

FIRST ENDORSEMENT

Chief Prosecutor, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, April 3, 2025. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-29420 against Sergeant David Vargas, Tax Registry No. 947569. The case was conferenced on March 27, 2025, before Assistant Deputy Commissioner of Trials Anne Stone, who approved a Dismissal of the Charges and Specifications with a penalty of Training to be imposed by the Department.

Andre D. Applewhite

Chief Prosecutor
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO. C-031434
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, VARGAS	FIRST DAVID	M.I.	COMMAND 138
SHIELD NO. 5180	TAX REGISTRY NO. 947569	SOCIAL SECURITY NO.	DATE APPOINTED 07/08/2008	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

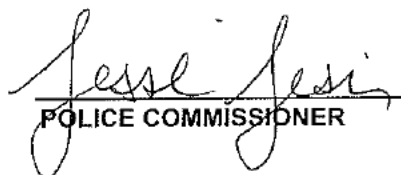
SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Sergeant David VARGAS, on or about August 9, 2022, at approximately 2345, while assigned to SRG 2 and on duty, in the vicinity of § 87(2)(b) Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that SGT.VARGAS threatened § 87(2)(b) with the use of force, in that he stated he would tase him if he did not get in the car, without police necessity.	DISMISSED	TRAINING .00 - Respondent will comply with and complete re-training prescribed by the Department.
2. Sergeant David VARGAS, on or about August 9, 2022, at approximately 2345, while assigned to SRG 2 and on duty, in the vicinity of § 87(2)(b) Bronx County, was discourteous, in that SGT. VARGAS told § 87(2)(b) he was "acting like a little kid" and "being a little baby", without police necessity.	DISMISSED	


FIRST DEPUTY COMMISSIONER

09/02/25
DATE

POLICE COMMISSIONER'S APPROVAL

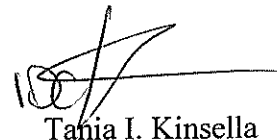
- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)


POLICE COMMISSIONER

11/7/25
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, September 2, 2025. Contents noted. I reviewed the negotiated plea in PODS Case No. C-031434 (CCRB Case No. 202205455) against Sergeant David Vargas, Tax No. 947569, with the recommendation that the Charges and Specifications against Sergeant Vargas be dismissed and that Sergeant Vargas receive Training. Assistant Deputy Commissioner, Trials Anne E. Stone reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

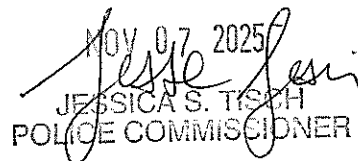


Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/jpc

APPROVED



NOV 07 2025
JESSICA S. TISCH
POLICE COMMISSIONER